

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ALFRED LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE SEAN A. BUTLER, SHIELD NO. 7505,
NYPD POLICE DETECTIVE JOSE D. ORTIZ, SHIELD
NO. 7843 and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS 1-10,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

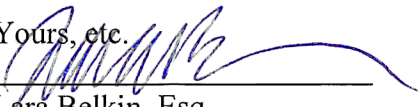
Plaintiff designates NEW
YORK County as the place of
trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 5, 2023

Yours, etc.



Lara Belkin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE SEAN A. BUTLER, SHIELD NO. 7505, 1 Police Plaza Path,
New York, NY 10038

NYPD POLICE DETECTIVE JOSE D. ORTIZ, SHIELD NO. 7843, 1 Police Plaza Path, New
York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ALFRED LOPEZ,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE SEAN A. BUTLER, SHIELD NO. 7505,
NYPD POLICE DETECTIVE JOSE D. ORTIZ, SHIELD
NO. 7843 and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ALFRED LOPEZ, by their attorneys, Shulman-Hill, PLLC, as and for their
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 18, 2019, at approximately 5:00 a.m., Plaintiff Alfred Lopez, while lawfully in the vicinity of 155 West 21st Street, Apartment 4E, County of New York, State of New York, was subject to an unlawful arrest, search, detention, and malicious prosecution by defendant Police Officers. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Alfred Lopez is a resident of the state of New York.

3. NYPD Police Detective Sean A. Butler, Shield No. 7505, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. At all times relevant herein, NYPD Police Detective Sean A. Butler, Shield No. 7505, was assigned to the Bronx Homicide Squad.

5. NYPD Police Detective Sean A. Butler, Shield No. 7505, is being sued in their individual and official capacities.

6. NYPD Police Detective Jose D. Ortiz, Shield No. 7843, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. At all times relevant herein, NYPD Police Detective Jose D. Ortiz, Shield No. 7843, was assigned to the Organized Crime Investigation Division.

8. NYPD Police Detective Jose D. Ortiz, Shield No. 7843, is being sued in their individual and official capacities.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on March 23, 2023.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. Their action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On June 18, 2019, at approximately 5:00 a.m., Plaintiff was lawfully present inside of the vicinity of 155 West 21st Street, Apartment 4E, County of New York, State of New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

19. At the aforementioned place and time, the Plaintiff was sleeping in bed with his girlfriend.

20. Plaintiff was awakened by loud shouting and banging on his front door.

21. Plaintiff's girlfriend opened the front door and at least three plain-clothed defendant officers entered the apartment with their guns drawn.

22. Defendant officers approached Plaintiff, who was lying in bed in his pajamas, and, absent probable cause or reasonable suspicion that Plaintiff was involved in any criminal activity, grabbed Plaintiff, pinned his arms behind his back and put metal handcuffs on his wrists.

23. At no point did Plaintiff resist the unlawful arrest.

24. Defendant officers found no weapons, drugs, or other contraband on Plaintiff's person, in the area within his custody and control, or during their search of the entire apartment.

25. Defendant officers did not show Plaintiff a warrant during their search, despite his request to see one.

26. Plaintiff was forcibly removed from his home wearing only long johns and slippers.

27. Lacking probable cause or an articulable, credible reason to believe that Plaintiff was engaged in unlawful conduct, defendant officers transported Plaintiff, in handcuffs, to, upon information and belief, an NYPD precinct in the Bronx, where they searched,

photographed, and interrogated Plaintiff, without properly informing him of his right to remain silent.

28. After spending the day in unlawful NYPD custody, Plaintiff was brought to the Brooklyn Federal Court House, where he was held for approximately twenty-four (24) additional hours.

29. While Plaintiff was in custody, defendant officers transmitted false and misleading statements to federal prosecutors, causing him to be charged with multiple felonies, including conspiracy to commit murder.

30. Plaintiff was arraigned on these false charges and, based in part on defendant officers' false and misleading statements, was remanded without bail by a judge.

31. Plaintiff was transferred multiple times between federal detention facilities during the pendency of his case, causing his family to have difficulty visiting him and compounding his emotional distress while fighting the false charges.

32. While in custody, Plaintiff was locked in his cell during two (2) fires at the Metropolitan Detention Center ("MDC") in Brooklyn, during which smoke billowed into his cell from the ventilation system, causing him respiratory distress and severe emotional harm.

33. Plaintiff refused multiple plea offers from prosecutors and consistently proclaimed his innocence during his incarceration.

34. It took 3.5 years to bring Plaintiff to trial, and for the entire 3.5 years Plaintiff was remanded to jail in unlawful police custody.

35. Plaintiff was further held at MDC while standing trial, which lasted approximately one month.

36. While incarcerated at MDC, Plaintiff told a psychologist that he was depressed and suicidal, which resulted in his being locked in his cell for seventy-two (72) hours, naked, where he was observed and humiliated by another inmate.

37. On October 20, 2022, Plaintiff was acquitted of all charges against him by a jury of his peers.

38. All charges which were summarily dismissed and sealed.

39. Plaintiff was finally released from unlawful custody.

40. Some of the defendant officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, detaining and confining Plaintiff.

41. The unlawful arrest, confinement, invasive search and detention by the individually named defendants caused the Plaintiff to sustain psychological, physical and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

42. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

43. Defendants owed a duty of care to Plaintiff.

44. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and handcuffing him.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

46. All of the foregoing occurred without any fault or provocation by Plaintiff.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

50. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

51. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the

Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

53. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

59. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

60. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

61. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

66. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

69. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

70. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

71. Defendants failed to intervene to prevent the unlawful conduct described herein.

72. As a result of the foregoing, Plaintiff suffered serious, debilitating and permanent injury, their liberty was restricted for an extended period of time, he was put in fear for their safety, and he was humiliated and subject to other physical constraints.

73. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

77. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded their false evidence to prosecutors in the NEW YORK County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the NEW YORK County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the NEW YORK County District Attorney's Office.

81. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

82. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

86. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

87. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

88. Defendants commenced and continued a criminal proceeding against Plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

90. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

NINTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

91. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

92. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;

- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

93. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

94. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

95. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

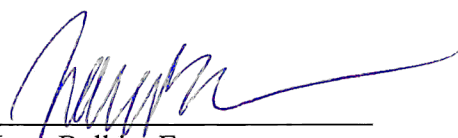
JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ALFRED LOPEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of their action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of their action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
May 5, 2023

By: 

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE SEAN A. BUTLER, SHIELD NO. 7505, 1 Police Plaza
Path, New York, NY 10038

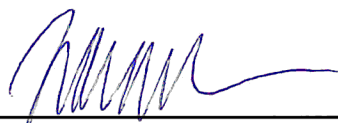
NYPD POLICE DETECTIVE JOSE D. ORTIZ, SHIELD NO. 7843, 1 Police Plaza Path,
New York, NY 10038

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason their verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 5, 2023



LARA BELKIN, ESQ.